

PERMANENT CONTRACT OF EMPLOYMENT

Made and entered into by and between:

KISHUGU AVIATION (PTY) LTD
Registration Number: 2004/012435/07
(Hereinafter referred to as "the Employer")

and

Arno Pauling
ID No 9407145035083
(Hereinafter referred to as "the Employee")

THE PARTIES HEREBY AGREE AS FOLLOWS:

1. Terms and Conditions of Employment

- 1.1 The Employer agrees to employ the Employee on the following terms and conditions. This contract of employment replaces all previous contracts or agreements that may have been entered into between the parties.
- 1.2 The Employee agrees to be employed and to act in the capacity as a **Command-and-Control Pilot Observer**, doing Areal Fire Fighting and related services as stipulated in this agreement.
- 1.3 The Employer and the Employee wish to agree on the terms and conditions upon which the Employee will render certain services to the Employer.
- 1.4 The Employee must acknowledge by way of his/her signature, the Employers requirements stipulated in the appropriate **Annexure** attached hereto, based on the type of operation:
 - 1.4.1 **Annexure 1** – Aerial Firefighting pilots.
 - 1.4.2 **Annexure 2** – Anti poaching pilots.
 - 1.4.3 **Annexure 3** – Instructors.
 - 1.4.4 **Annexure 4** – Charter pilots.

2. Commencement

- 2.1 The Employee shall be employed on a permanent basis starting on **09 January 2025**. The employment contract is subject to a 3-month probation period.
- 2.2 The employee reports directly to the relevant Line Captain or in the absence of the Line Captain then to the Chief Pilot of Kishugu Aviation (Pty) Ltd.
- 2.3 The Employee shall adhere to the reporting structure of Kishugu Aviation (Pty) Ltd.

3. Statutory Requirements

- 3.1 This contract of employment and conditions of employment is subject to adherence but not limited to the below:
- 3.1.1 The Basic Conditions of Employment Act, Act 75 of 1997.
 - 3.1.2 Civil Aviation Authority CATS & CARS as amended.
 - 3.1.3 Kishugu Aviation (Pty) Ltd Flight Operations Manual Part 1 to 4 as amended.
 - 3.1.4 Kishugu Aviation (Pty) Ltd Safety Management System (SMS) as amended.
 - 3.1.5 Kishugu Aviation (Pty) Ltd Line Station Manuals as amended.
 - 3.1.6 Kishugu Aviation (Pty) Ltd Route Manuals as amended.
 - 3.1.7 Kishugu Aviation (Pty) Ltd Standard Operating Procedures (SOP's) as amended.
 - 3.1.8 Kishugu Aviation (Pty) Ltd Maintenance Control Manual as amended.
 - 3.1.9 Kishugu Aviation (Pty) Ltd Quality Assurance Manual, processes and Procedures as amended.

4. Performance of Service

- 4.1 The services shall be carried out under the direction and to the satisfaction of the Employer as per the relevant Kishugu Aviation (Pty) Ltd manuals as listed in part 3 above.
- 4.2 The Employee agrees to do standby and perform the necessary work as per the job description when on duty in accordance with the published roster
- 4.3 Time off shall be scheduled at the discretion of the Employer and in accordance with the Company's FDP Demonstration Scheme. Where unscheduled time off is necessitated by the Employee's ill health, a medical certificate must be produced and sent to the Line Captain. Such medical certificate shall be produced in accordance with the Organizations leave policy and Basic Conditions of Employment Act.

5. Employee's General Obligations

- 5.1 The Employee will be holding the necessary skills, qualifications and experience which may be necessary for the Employee to perform the services effectively as per the required standards as set out in Kishugu Aviation (Pty) Ltd Operations manual and where legal requirements needs to be met.
- 5.2 The Employee shall observe and adhere to the standards set by the Employer, inclusive of valid pilot licence and valid flight medical.
- 5.3 The Employee shall at all times promote the interests of the Employer and not make any Representations, or give or allow any express or implied warranty in respect of services and work performed by the Employer.
- 5.4 The Employee shall furthermore observe all applicable laws, ordinances, decrees, rules and regulations and service standards relating in any manner to the performance by the employee of the obligations in terms of this agreement and shall keep and maintain all records and documents as the Employer may reasonably require from the Employee.
- 5.5 The company may require the employer to receive extensive training for imparting the required level of skill, for the effective execution of the skills and qualifications pertaining to his/her position. If this agreement is reached between the employer and employee, the employee will be obliged to enter into a bonding agreement with the company. It will be expected of the employee to work back the value of the training over a period of time. If the Employee does not complete the specified term or agreement period as required to cover costs of the training bond, the cost of training provided to him/her by the Employer will be deducted pro-rata from monies owed to the Employee.

6. Accidents/incidents safety policy

- 6.1 Kishugu promotes safety through its safety management system, pilots are expected to actively participate by reporting all hazards, incidents, serious incidents, and accidents. Participation in safety discussions and investigations are encouraged to ensure a proactive safety culture.
- 6.2 Kishugu Aviation's Safety Policy refers to a non-punitive system where individuals may report any safety hazard, error, incident, serious incident or accident without fear of reprimand. In the event where a wilful act due to negligence can be proven, such act will punitively be dealt with based on merit and cause.

7. Remuneration

- 7.1 Your basic salary, payable in arrears, monthly on the last working day of the month via electronic bank transfer is: .
- 7.1.1 **R23,829.00** per month; and
- 7.1.2 Accommodation Allowance of **R9 500.00** is payable when away from home base during summer/winter season.
- 7.1.3 Commission for Revenue generating flights: **R1 500,00** per hour, as recorded in the Captains Log and approved by the Chief Pilot.
- 7.2 The following tariff deductions will be made from the Employee's gross remuneration if on the Company's payroll, where applicable:
- 7.2.1 Income tax
- 7.2.2 Unemployment Insurance Fund Contributions
- 7.2.3 Any other statutory amount
- 7.2.4 Any other amount consented to by the Employee in writing
- 7.2.5 Any amount recoverable for damage to company property.

8. Leave

- 8.1 Due to the nature of the Contract of Employment and considering the Company's FDP Demonstration Scheme for days off, the daily rate of employment is inclusive of remuneration for leave pay. The employee is therefore not entitled to any further leave other than already agreed in his/her employment agreement.

9. Working Hours

- 9.1 Daily reporting for standby will be strictly in accordance with the operational requirements of the airbase.
- 9.2 Daily standby will only be recognised for payment if timesheets on Air Maestro are completed.
- 9.3 Flight and duty periods will be recorded as per the company's FOM's and SOP's.

10. Health

- 10.1 It is a condition of service that the Employee is in good health at all times. The Employee agrees to submit him/her, as and when reasonably requested by the Employer and at the expense of the Employer, for an examination by a medical practitioner appointed by the Employer. Such examination will, inter alia, become compulsory if the Employee is absent from work as a result of illness for any period exceeding three (3) weeks during any three (3) month period.
- 10.2 It is a condition of employment that a valid pilot licence for the allocated aircraft and valid flight medical certificate be current during the period of employment, of the cost of the employee.
- 10.3 In the event of loss of medical, or license. The employee shall advise the employer immediately whereupon an agreement shall be reached with regards to this contract. In the event of the employee being unable to fulfil its obligations as per this agreement, the employer reserves the right to terminate this agreement.

11. Acknowledgement

- 11.1 The Employee acknowledges and agrees that the nature of this agreement has been explained to the Employee prior to the Employee's signature of this agreement.

12. Indemnity

- 12.1 The Employee hereby indemnifies and hold the Employer harmless against all claims, demands, fines, penalties, actions, proceedings, judgments, damages, losses, costs, expenses, or other liabilities caused, whether negligently or otherwise, by the non-observance or non-compliance by the Employee of his/her duties and obligations under this agreement.

13. Termination

- 13.1 This agreement, however, may be terminated (in some instances recognised by law, without notice) by the Employer on the occurrence of any of the following events:
- 13.1.1 The death of the Employee;
- 13.1.2 The illness or incapacity that prevents the Employee from performing his/her functions/duties for a period as prescribed;
- 13.1.3 Any gross default, misconduct, breach or non-observance of any of the conditions recorded in MOP's and SOP's;
- 13.1.4 Any act in terms of Disciplinary policy.

14. Safety and Security

- 14.1 The Employee agrees to obey all safety and security policies and procedures, rules and regulations and actively participate in the safety culture of the employer.
- 14.2 The Employee shall be covered by the provisions of the Workmen's Compensation Act, as amended, in respect of an injury or accident occurring in the course of carrying out his/her duties during his/her employment with the Company.
- 14.3 The Employee agrees to ensure the safekeeping and security of all company assets, equipment and documentation at all times.

15. Confidential Information

- 15.1 The Employee hereby undertakes to keep and hold all secret and confidential information obtained by or made available to the Employee during the rendering of his/her services, concerning the business, activities and operations of the Company and/ or the third party and not disclose such information to any other person whatsoever. This includes, but is not limited to, the Company's trade secrets, processes, customer and supplier lists. The obligation of this clause shall remain in place after termination of this agreement.
- 15.2 Upon termination of his/her employment, the Employee undertakes to return to the Employee all documents, keys, credit cards, books, reports, manuals, correspondence, customer lists, computer programmes and all other materials and all copies thereof, plus any tools, equipment, and clothing, acquired by the Employee during the duration of his/her employment.
- 15.3 The Employee agrees that, for the period of six (6) months after termination of his/her employment with the Company he/she shall not, directly or indirectly, on his/her own behalf or on behalf of others, undertake or assist in the solicitation of customers whom he/she has, directly or indirectly, dealt with during the course of his/her employment with the Company.

16. Legislation

- 16.1 The Employee and the Company acknowledge that this agreement constitutes the entire contract between them and that there shall be no variation of the terms and conditions thereof unless reduced to writing and signed by all the parties.
- 16.2 The parties agree that all the terms and conditions of employment are:
- 16.2.1 Specified in this agreement;
- 16.2.2 Those conditions not specified in this agreement shall be in terms of the Employer's rules and regulations and procedures;
- 16.2.3 That in the event that this employment contract or the Employer rules, regulations and procedures are silent on any specific point then, the relevant section(s) of the Basic Conditions of Employment Act (as amended) or the relevant Bargaining Council, if any, shall apply.

SIGNATORIES TO CONTRACT OF EMPLOYMENT

THE EMPLOYER: Kishugu Aviation (Pty) Ltd

Frank Smook
Name: Person Responsible: Flight Operations


Signature:

THUS, DONE AND SIGNED AT Pretoria ON THIS 30th DAY OF January 2025.

Mathew Beresford-Carter
Name: Chief Pilot


Signature:

THUS, DONE AND SIGNED AT George ON THIS 30 DAY OF January 2025.

Erick Nel
Name: Line Captain


Signature:

THUS, DONE AND SIGNED AT Bredasdorp ON THIS 30 DAY OF January 2025.

THE EMPLOYEE:

Employment on the terms as set out in this agreement is accepted by:

Arno Pauling
Name: Employee


Signature:

THUS, DONE AND SIGNED AT Bredasdorp ON THIS 30 DAY OF January 2025.

Name: Witness

Signature:

THUS, DONE AND SIGNED AT _____ ON THIS _____ DAY OF _____ 2025.

Aerial Firefighting pilots:

- All Pilots to login daily on Air Maestro and complete timesheets.
- All pilots to supply own helmet.
- Kishugu will supply 2 x flight suits per pilot per annum or as required.
- Pilots must use own cell phones for private calls.
- Flying commission will only be earned for operational flights (revenue generating flights)
- Pilots will not earn commission for ferry flights, internal flights and test flights (non-revenue generating flights)
- Any aircraft training provided by the Company may be bonded against the pilot;
- Pilots will operate according to SACAA Regulations at all times.
- Failure to comply with Kishugu Aviation SOP's, SACAA's CAT's and CAR's can lead to dismissal.
- Pilots to complete all documentation required by the company in a professional, neat, legible and correct format;
- Spotter pilots to supply own camera;
- Seasonal pilots will be paid R 9, 500.00 per month (or R 316.00 per day) accommodation allowance for the period when not operating from the pilots home base, unless the company makes other arrangements for the pilot;
- Relief and Ad Hoc pilot's accommodation and travel will be paid by the Company;
- Where accommodation is provided by the Employer **NO** "accommodation allowance" will be paid;
- Domestic running expenses must be shared by pilots making use of company accommodation;
- Pilots transport costs for use of own vehicle to travel one way between seasons will be reimbursed at R4.40/KM
- Pilots are responsible for their own transport costs to and from base during the season and to and from leave or time off periods;
- The Employer will pay all transport during tours i.e. for pilots to do duties at other bases as required by the
- Upon resignation all Company Equipment and Clothing shall be returned to the Employer, as well as reimbursement of Costs incurred for Licence upkeep if done withing the preceding 12 months;

My preference is: *Indicate by "X" next to the Preferred Season.*

☐

Summer Season

☒

Winter Season

A. Pauling

[Signature]
FRANK SMOK
P.R.F.O.
KISHUGU AVIATION

[Signature]

[Signature]

Aircraft Care

- Pilots are obliged to keep their aircraft in a neat, clean and tidy condition at all times;
- Sun-screens must be put up to protect the interior from damage when aircraft is parked for extended periods in the open;
- Post flight inspections are essential and where appropriate snags must be reported to the relieving pilot
- Aircraft must be appropriately tied down at all times when not on standby and after hours;
- Failure to comply with the above could lead to disciplinary action being taken.
- The handover form must be neatly completed and the following aircraft equipment and auxiliary equipment handed over.
- All documentation required by the company in a professional, neat, legible and correct format;

A. Pauling



Page 8 of 8

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